

GORSUCH, J., dissenting

bar to an indictment for the same offence before any other tribunal.”⁴⁷ In 1846, the Scottish High Court of Justiciary declared that “[i]f a man has been tried for theft in England, we would not try him again here.”⁴⁸ Twentieth century treatises recited the same rule.⁴⁹ In 1931, the American Law Institute stated that “[i]f a person has been acquitted in a court of competent jurisdiction for an offense in another country he may not be tried for the same offense again in an English Court.”⁵⁰ And in 1971, an English judge explained that the bar on “double jeopardy . . . has always applied whether the previous conviction or acquittal based on the same facts was by an English court or by a foreign court.”⁵¹ The Court today asks us to assume that all these legal authorities misunderstood the common law’s ancient rule. I would not.

Even more pertinently, consider how 18th-century Americans understood the double jeopardy provision they had adopted. The legal treatises an American lawyer practicing

⁴⁷J. Archbold, *Pleading and Evidence in Criminal Cases* 89 (5th ed. 1834). Many more authorities are to the same effect. See, e.g., 1 *Encyc. of the Laws of England, Autrefois Acquit*, 424–425 (A. Renton ed. 1897); 2 J. Gabbett, *Criminal Law* 334 (1843); 2 E. Deacon, *Digest of the Criminal Law of England* 931 (1831); R. Matthews, *Digest of Criminal Law* 26 (1833); H. Nelson, *Private International Law* 368, n. y (1889); 1 W. Russell, *Crimes and Indictable Misdemeanors* 471–472 (2d ed. 1826); H. Woolrych, *Criminal Law* 129 (1862); 2 M. Hale, *Pleas of the Crown* 255 (1st Am. ed., S. Emlyn ed. 1847); H. Smith, *Roscoe on the Law of Evidence* 199 (8th ed. 1874).

⁴⁸*Her Majesty’s Advocate v. MacGregor*, (1846) Ark. 49, 60.

⁴⁹A. Gibb, *International Law of Jurisdiction in England and Scotland* 285–286 (1926); A. Gibson & A. Weldon, *Criminal and Magisterial Law* 225 (7th ed. 1919); S. Harris, *Criminal Law* 377 (9th ed. 1901); C. Kenny, *Outlines of Criminal Law* 469 (10th ed. 1920); H. Cohen, *Roscoe on the Law of Evidence* 172 (13th ed. 1908).

⁵⁰ALI, *Administration of Criminal Law* § 16, p. 129 (Proposed Final Draft, Mar. 18, 1935).

⁵¹*Regina v. Treacy*, [1971] A. C. 537, 562, 2 W. L. R. 112, 125 (opinion of Diplock, L. J.) (citing *Roche*, 1 Leach 134, 168 Eng. Rep. 169).